

distribution or a report of status of administration pursuant to Probate Code section 12200. The clerk is directed to provide notice to the parties.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Berenice Montelongo v. Walsh Vineyards Management, Inc.

25CV000047

MOTION FOR ORDER COMPELLING ARBITRATION AND STAYING THE ACTION OF PLAINTIFF BERENICE MONTELONGO

TENTATIVE RULING: The motion is GRANTED. Plaintiff's Non-Individual PAGA Claims (defined below) are ordered severed from her other claims. Plaintiff is ordered to arbitrate all of her claims, excepting her Non-Individual PAGA Claims. The action is STAYED pending resolution of said arbitration. The Case Management Conference set for June 9, 2026 is VACATED. The matter is set for a Status Conference on October 6, 2026, at 8:30 a.m. in Dept. B.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

Defendant Walsh Vineyards Management, Inc. (Walsh) moves for an order compelling arbitration of this case on grounds that the parties agreed to arbitrate the instant dispute. Walsh further moves for an order staying those of Plaintiff's Private Attorneys General Act (PAGA) claims relating to alleged acts and omissions effecting employees other than Plaintiff (Non-Individual PAGA Claims) pending completion of arbitration.

Walsh's Request for Judicial Notice is DENIED in its entirety. The subject documents are not relevant to the Court's resolution of the issues presented. (See *In re Tobacco Cases, II*, JCCP 4042 (2004) 123 Cal.App.4th 617, 626 [“Although a court may take judicial notice of a variety of matters [citation], only relevant material may be noticed.” [Citation.]”])

B. LEGAL BACKGROUND

A proceeding to compel arbitration is, in essence, a suit in equity to compel specific performance of a contract. (*California Teachers Assn. v. Governing Bd.* (1984) 161 Cal.App.3d 393, 399.) On a petition to compel arbitration, supported by prima facie evidence of a written agreement to arbitrate the underlying controversy, the court must determine whether the agreement exists and, if any defense to its enforcement is raised, whether the agreement is enforceable. (*Rosenthal v. Great Western Financial Sec. Corp.* (1996) 14 Cal.4th 394, 413 (*Rosenthal*)). The moving party bears the burden of proving the existence of the agreement by a preponderance of the evidence. (*Ibid.*) The opposing party bears the burden of producing evidence of and proving (by a preponderance) any fact necessary to any defense raised. (*Ibid.*)

C. LEGAL ANALYSIS

1. Walsh Makes a Prima Facie Showing of a Binding Agreement to Arbitrate All of Plaintiff's Claims Other than Non-Individual PAGA Claims

Walsh presents evidence that it and Plaintiff entered into that certain Arbitration Agreement attached as Exhibit A to the Declaration of Ruben Flores (Flores Decl.).¹ Plaintiff previously conceded that she signed the Arbitration Agreement as part of her onboarding process. (See Plaintiff's Opposition to Defendant's Motion to Compel Arbitration and Staying the Action filed April 3, 2026, at 2:12-14.)

The Court finds that the scope of claims subject to arbitration pursuant to the Arbitration Agreement is broad and encompasses all of Plaintiff's claims against Walsh in the instant action, except for Non-Individual PAGA Claims, which are expressly excluded pursuant to Section 2, subdivision (vi).

Based on the foregoing, the Court finds that Walsh has carried its initial burden of proving, by a preponderance of the evidence, an agreement to arbitrate each of Plaintiff's claims, except for Non-Individual PAGA Claims. (*Rosenthal, supra*, 14 Cal.4th at 413.)

2. Walsh Has Not Waived the Right to Arbitrate

Through the Opposition, Plaintiff argues that Walsh waived its right to compel arbitration. (See *id.* at 8:4, *et seq.*)

"On petition of a party to an arbitration agreement . . . the court shall order the petitioner and the respondent to arbitrate the controversy . . . unless it determines that . . . [t]he right to compel arbitration has been waived by the petitioner" (Code Civ. Proc., § 1281.2, subd. (a).) As the California Supreme Court has made clear, the catch-all category called "waiver" actually consists of at least four distinct legal defenses to the enforcement of an agreement to arbitrate. As discussed in *Platt Pacific, Inc. v. Andelson* (1993) 6 Cal.4th 307 (*Platt Pacific*), "[g]enerally, 'waiver' denotes the voluntary relinquishment of a known right. But it can also mean the loss of

¹ A certified English translation of the Arbitration Agreement is attached as Exhibit C to the Declaration of Bruce Taylor filed May 19, 2026. The Court finds that the Declaration of Mr. Taylor is sufficient to certify the English-language translation of the Agreement.

an opportunity or a right as a result of a party's failure to perform an act it is required to perform, regardless of the party's intent to abandon or relinquish the right....” (*Id.* at p. 315.) The *Platt Pacific* Court noted that one line of case law discusses “that a party may ‘waive’ its right to arbitrate by failing to timely demand arbitration. We conclude that those decisions use the word ‘waiver’ in the sense of the loss or forfeiture of a right resulting from failure to perform a required act.” (*Id.* at 315.) The Court discussed another line of cases addressing the question, “whether a party has abandoned its right to arbitration by conduct inconsistent with the exercise of the right” and noted that this question “is altogether different from the question of whether a condition precedent to the contractual right to arbitrate has occurred or has been legally excused.” (*Id.* at 318.)

The Court further elucidated this area of law in *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 583 (*Quach*). There, the Court held that “[i]n determining whether a party to an arbitration agreement has lost the right to arbitrate by litigating the dispute, a court should treat the arbitration agreement as it would any other contract, without applying any special rules based on a policy favoring arbitration. That is, courts should apply the same procedural rules that they would apply to any other contract.” (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 583 (*Quach*).) “[U]nder California law, a party may, as a result of its litigation conduct, lose its right to compel arbitration on various grounds” including estoppel, forfeiture, and timeliness. (*Ibid.*)

“To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it.” (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 584 (*Quach*).)

The Court finds no evidence tending to show that Walsh intentionally relinquished or abandoned its right to arbitrate Plaintiff’s claims.

Plaintiff argues that a waiver may implied from Walsh’s: (1) initial 9-month delay in bringing its first motion to compel arbitration; and (2) its subsequent 5-month delay in bringing its second motion to compel arbitration. (See Opposition at 8:21-23.) Plaintiff argues that, pursuant to the holding in *St. Agnes v. Medical Center v. PacifiCare of California* (2003) 31 Cal.4th 1187 (*St. Agnes*), “Courts routinely find waiver where a party delays in asserting arbitration rights and engages in litigation conduct inconsistent with arbitration.” (Opposition at 9:12-15.)

The *St. Agnes* analysis, however, is no longer the proper approach under controlling authority. (See *Quach, supra*, 16 Cal.5th at 583.) Rather, “[i]n ruling on a motion to compel arbitration, a court should separately evaluate each generally applicable state contract law defense raised by the party opposing arbitration. It should not lump distinct legal defenses into a catch-all category called ‘waiver.’” (*Id.* at 583-584.)

Plaintiff, through the Opposition, fails to discuss or argue any specific contract defense to enforcement of the arbitration agreement. (See Opposition at 8:4-10:4.) As such, Plaintiff fails to persuade the Court that any such defense bars enforcement based on Walsh’s delay. (See

Quantum Cooking Concepts, Inc. v. LV Associates, Inc. (2011) 197 Cal.App.4th 927, 934 [“Rules of Court rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party’s theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide”].)

Finally, Plaintiff contends that “Defendant’s motion to compel arbitration should be denied because Defendant failed to comply with the Agreement’s mandatory pre-arbitration dispute resolution procedure before seeking to compel arbitration. Under the plain language of the Agreement, the parties agreed that they would first attempt to resolve disputes informally and only thereafter submit unresolved disputes to arbitration.” (Opposition at 10:8-12.)

The Court finds no merit in the argument, particularly in light of the fact that it was *Plaintiff* who initiated the instant lawsuit. Plaintiff does not contend, let alone present evidence, that prior to doing so she complied with the “mandatory pre-arbitration dispute resolution procedure.” In this context, the Court does not find that any failure, by Walsh, to do so prior to seeking to compel Plaintiff to arbitrate her claims, constitutes or supports a finding of waiver.

3. Walsh Has Shown Good Cause for an Order Staying Proceedings Pending Resolution of the Arbitration

“If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies. . . . If the issue which is the controversy subject to arbitration is severable, the stay may be with respect to that issue only.” (Code Civ. Proc., § 1281.4 (Section 1281.4).)

Where, through arbitration, a plaintiff is found not to be an aggrieved employee under PAGA, that plaintiff may lack standing to assert Non-Individual PAGA Claims. (See *Rocha v. U-Haul Co. of California* (2023) 88 Cal.App.5th 65, 77-78 [“Once the Labor Code violations based on which a plaintiff seeks to qualify for PAGA standing have been finally adjudicated, the extent to which that adjudication prevents a plaintiff from qualifying for standing will depend on general principles of issue preclusion”]; see also *Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104, 1124 [“If the arbitrator determines that [plaintiff] is not an aggrieved employee and the court confirms that determination and reduces it to a final judgment, the court would give effect to that finding, and [plaintiff] could no longer prosecute his non-individual claims due to lack of standing”].)

Based on the foregoing authority, the Court finds that Plaintiff’s status as an aggrieved employee is an issue involved in Plaintiff’s Non-Individual PAGA Claims. Because the Court, above, has ordered Plaintiff to arbitrate her individual PAGA claim, and because that arbitration will involve the question of whether Plaintiff is an aggrieved employee pursuant to PAGA, the Court is required to stay Plaintiff’s Non-Individual PAGA Claims pending resolution of the arbitration. (See Section 1281.4.)

Plaintiff argues that “the [Arbitration Agreement] contains no clause providing that representative PAGA claims will be stayed pending arbitration.” (Opposition at 12:1-2.) Plaintiff cites to no authority suggesting that such a stay is only permitted or appropriate where the parties have agreed thereto. The Court does not find that the lack of any agreement to the subject stay is controlling. (See discussion, *supra*; See also Section 1281.4 and *Rocha v. U-Haul Co. of California*, *supra*, 88 Cal.App.5th at 77-78.)

Finally, Plaintiff’s reliance on the holding in *Duran v. EmployBridge Holding Co.* (2023) 92 Cal.App.5th 59 (*Duran*), is misplaced. That case involved only a review of a determination that the arbitration agreement at issue excluded PAGA claims from its definition of arbitrable claims. (See *id.* at pp. 66-67.) The propriety of a stay pursuant to Section 1281.4 was not at issue in the action. Moreover, in *Duran*, the Court found that all PAGA claims – both individual and non-individual, were excluded from the subject agreement’s definition of arbitral claims. As discussed above, the Arbitration Agreement (at issue here) excludes only Non-Individual PAGA Claims.

D. CONCLUSION

Based on the foregoing, the Motion is GRANTED. Plaintiff’s Non-Individual PAGA Claims are ordered severed from her other claims. Plaintiff is ordered to arbitrate all of her claims, excepting her Non-Individual PAGA Claims. The action is STAYED pending resolution of said arbitration.

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Shahbaz Shahabi v. Shahin Shahabi et al

25CV002685

[1] DEMURRER TO CROSS-COMPLAINT

TENTATIVE RULING: The Demurrer is SUSTAINED WITH LEAVE TO AMEND. Defendants are granted 10 days’ leave from notice of entry of order to amend this cross-complaint in accordance with this rule. (See Rules of Court, rule 3.1320(g).) Plaintiff is directed to provide notice of entry of order.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTER